

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FORMUKLEEN, INC.,

Complainants

v.

TOP SHIPPING SYSTEMS, CORP.,

Respondent.

CONSENT MOTION OF SPECTOR RUBIN, P.A. AND ATTORNEYS
ANDREW R. SPECTOR, ESQ., ROBERT M. BORAK, ESQ., AND
IDANIA K. BOND, ESQ., TO WITHDRAW AS COUNSEL FOR RESPONDENT
TOP SHIPPING SYSTEMS, CORP.

SPECTOR RUBIN, P.A., and Attorneys Andrew R. Spector, Esq., Robert M. Borak, Esq., and Idania K. Bond, Esq., (collectively, the “Firm”), pursuant to 46 C.F.R. § 502.23(e) and Rule 1.16 of the American Bar Association’s Model Rules of Professional Conduct, hereby files this Consent Motion to Withdraw as Counsel for Respondent, Top Shipping Systems, Corp. (“TSS” or “Respondent”). In support thereof, the Firm states as follows:

1. The Firm respectfully seeks leave of the Federal Maritime Commission to withdraw as counsel for Respondent. Irreconcilable differences have arisen between the Respondent and the Firm that have materially impacted the attorney-client relationship and make continued representation unreasonably difficult.
2. Consistent with 46 C.F.R. § 502.23(e), withdrawal is permitted under Rule 1.16(b)(5) and Rule 1.16(b)(6) of the American Bar Association’s Modal Rules of Professional Conduct.

3. Respondent has been given reasonable notice and warning that the Firm would seek to withdraw as counsel in this matter, has been advised of the consequences of withdrawal.
4. Respondent consents to the withdrawal.
5. Although the withdrawal can be accomplished without material adverse effect on the interests of Respondent or any other party to this proceeding, it is respectfully submitted that Respondent be afforded sufficient time to retain counsel in this matter. The discovery deadline is currently set for May 22, 2026. However, Complainant has filed discovery-related motions which have not yet been responded to. Further, Respondent intends to file its own discovery motions as well as an extension of the deadlines. It is respectfully submitted that such an extension was contemplated in the Court's Order of April 1, 2026.
6. Respondent will remain a party of record and responsible for all filings, deadlines, and obligations unless and until substitute counsel enters an appearance.
7. In the interim, and until substitute counsel appears, all notices, filings, and correspondence should be directed to Respondent at its last known contact information as follows:

Name: Top Shipping Systems, Corp.

Address: 12480 NW 25th Street, Ste. 100, Miami, Florida 33182

Email: Rachel Villena (rachel.villena@tsscorp.us) and Ricky Villena (ricky.villena@tsscorp.us)

WHEREFORE, SPECTOR RUBIN, P.A., and Attorneys Andrew R. Spector, Esq., Robert M. Borak, Esq., and Idania K. Bond, Esq., respectfully request that the Federal Maritime Commission: (i) grant this Consent Motion to Withdraw as Counsel for Respondent, Top Shipping Systems, Corp.; (ii) afford Respondent additional time to retain new counsel; (iii) and (ii) provide such other and further relief as the Commission deems just and proper.

Dated: May 13, 2026.
Miami, Florida

Respectfully submitted,

SPECTOR RUBIN, P.A.

By: /s/ Robert Borak
Andrew R. Spector, Esq.
Florida Bar. No. 634093
Robert M. Borak, Esq.
Florida Bar. No. 15923
Idania K. Bond, Esq.
Florida Bar No. 1034222
3250 Mary Street, Ste. 405
Miami, Florida 33133
Telephone: (305) 537- 2000
Facsimile: (305) 537- 2001
robert.borak@spectorrubin.com
andrew.spector@spectorrubin.com
idania.bond@spectorrubin.com
Attorneys for Respondent

CERTIFICATE OF CONFERENCE

The undersigned counsel hereby certifies that, prior to filing this Motion, counsel saw no reason to consult with Ms. Dandan, the representative of Complainant, as Ms. Dandan has made it clear – both in her correspondence to the undersigned and in her submissions to the Commission, that she refuses to grant any extensions or in fact any accommodations to Respondent, despite warnings from the Presiding Officer not to engage in such bad faith behavior and despite having ethical obligations as provided by the Commission’s Rules.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 13th day of May, 2026, I have served the aforementioned document to all parties of record in this proceeding via electronic mail.

By: /s/ Robert Borak
Robert M. Borak, Esq.
Attorneys for Respondent